

**FIRST AMENDMENT TO THE
UNIVERSITY OF NEBRASKA DEFERRED COMPENSATION AGREEMENT**

THIS AMENDMENT (the "Amendment") TO THE UNIVERSITY OF NEBRASKA DEFERRED COMPENSATION AGREEMENT is entered into effective February 19, 2026, by and between the Board of Regents of the University of Nebraska (the "University") and Joanne W. Li, Ph.D., ("Chancellor Li"), collectively referred to as the Parties.

WHEREAS, the University and Chancellor Li are parties to the University of Nebraska Deferred Compensation Agreement effective July 1, 2021 (the "Agreement"); and

WHEREAS, Section 8(a) of the Agreement permits the Parties to amend the Agreement;
and

WHEREAS, the Parties desire to amend the Agreement to provide for: (a) investment selection by Chancellor Li in relation to the Account under the Agreement, and (b) revisions to the vesting and distribution provisions for Fiscal Years from and after July 1, 2026 under the Agreement.

NOW THEREFORE, the Parties hereby agree as follows:

1. The recitals set forth above are incorporated herein by reference.
2. Section 1 of the Agreement is amended to read as follows:

Section 1. Account Credits; Account Investment.

(a) Credits to Account. The University shall, during the month of July 2021, credit via cash deposit to a separate account owned by the University, entitled the "Chancellor Li Deferred Compensation Account" (the "Account"), 11.5 percent of Chancellor Li's first fiscal year base salary as Chancellor in effect on July 1, 2021 (the "Initial Credit Amount"), beginning on July 1, 2021 and ending June 30, 2022. For purposes of this Agreement, "Fiscal Year" shall mean July 1 to June 30. For each subsequent Fiscal Year, if Chancellor Li continues to serve as Chancellor as of July 1 of such Fiscal Year, then the University shall, during the month of July of such Fiscal Year, credit 11.5 percent of Chancellor Li's annual base salary as Chancellor in effect on July 1 of such Fiscal Year (the "Annual Credit Amount") to the Account (subject to the termination provision in Section 3(c) herein). Each credit of the Annual Credit Amount to the Account shall be attributable to services to be performed by Chancellor Li as Chancellor for the Fiscal Year in which the credit is made.

(b) Earnings Account Adjustment. The Account shall be adjusted from time to time, not less than annually, to reflect deemed income received or accrued and deemed gains or losses, if any, realized from investing amounts credited to the Account, and for any investment management fees attributed to

such investment, based on the investment allocation as set out in subsection (c) below. Sums so accumulated or invested shall be held exclusively by and for the benefit of the University, shall be part of the general assets of the University, subject to the claims of its creditors, and Chancellor Li shall have no current or future enforceable interest therein, except as provided in this Agreement.

(c) Investment Selection. Chancellor Li may select, in writing directed to the Senior Vice President and Chief Financial Officer of the University, one or more Investment Options among which amounts credited to the Account shall be deemed to be allocated. "Investment Options" means a mutual fund or other investment alternative, approved by the University, and designated as available for the purposes of evaluating deemed income to the Account.

The University shall provide Chancellor Li with a list of Investment Options. From time to time, in the sole discretion of the University, the list of Investment Options available may be revised. Chancellor Li may make changes to her selected Investment Options pursuant to the procedures and deadlines established by the University. Such changes shall become effective as soon as administratively feasible after receipt of a satisfactory request. All Investment Options selections must be denominated in whole percentages unless the University determines that lower increments are acceptable. The University does not represent or guarantee investment returns with respect to any Investment Option and shall not be required to restore any loss which may result from such investment or lack of investment.

At no time shall Chancellor Li have any real or beneficial ownership in any Investment Option or the Account. Although the University intends to invest the Account according to Chancellor Li's written requests, it reserves the right to invest the Account without regard to such requests. Chancellor Li's investment selection and allocation shall be used solely for purposes of adjusting the value of the Account balance pursuant to subsection (b) above.

If Chancellor Li fails to make an investment allocation in writing with respect to the Account, such Account shall be invested in an investment option determined by the University.

3. Section 3(c) of the Agreement is amended to read as follows:

(c) Vesting/Distributions After Fifth Fiscal Year of Service. If Chancellor Li shall continue as Chancellor for additional Fiscal Years from and after July 1, 2026, the assets credited to the Account by the University during each Fiscal Year, including all investment earnings attributed on the books and records of the University thereto for such Fiscal Year, shall vest as of July 1 following the end of each such Fiscal Year, and shall be distributed (less required withholding) in a lump sum on or before July 31 following the end of each such Fiscal Year. For example, if Chancellor Li's service as Chancellor

extends through July 1, 2027, the assets so credited to the Account through June 30, 2027, including all investment earnings attributed on the books of the University thereto, shall vest on July 1, 2027, and shall be distributed (less required withholding) to Chancellor Li in a lump sum on or before July 31, 2027. This Fiscal Year credit/vesting program shall continue for as long as Chancellor Li shall continue to serve as Chancellor, unless terminated by the University upon written notice to Chancellor Li not less than sixty (60) days prior to the beginning of the Fiscal Year of any such credit/vesting period.

[Signature page to follow.]

**THE BOARD OF REGENTS OF THE
UNIVERSITY OF NEBRASKA**

By:  02/20/2026 | 01:47 CST

Jeffrey P. Gold, M.D. Date
President

By:  02/19/2026 | 21:36 CST

Joanne W. Li, Ph.D. Date
Chancellor

**UNIVERSITY OF NEBRASKA
DEFERRED COMPENSATION AGREEMENT**

This Deferred Compensation Agreement (this "Agreement"), effective as of July 1, 2021, is made by and entered into between the Board of Regents of the University of Nebraska, a public body corporate under the Constitution and Statutes of the State of Nebraska (the "University") and Joanne W. Li, Ph.D., ("Chancellor Li"), collectively referred to as the Parties.

RECITALS

- A. The University is an organization described in Section 501(c)(3) of the Internal Revenue Code ("Code") and, as such, is organized and operated exclusively for charitable and educational purposes.
- B. The University's governing Board of Regents (the "Board") has authorized a deferred compensation program pursuant to Section 457(f) of the Code, to be funded by the University of Nebraska Foundation for Chancellors of the University.
- C. Chancellor Li is being hired by the University to serve as Chancellor of the University of Nebraska at Omaha ("Chancellor"), effective July 1, 2021.
- D. The University would suffer loss if Chancellor Li were to accept another offer of employment, and it is thus ordinary, necessary and reasonable to provide Chancellor Li with additional compensation on a deferred basis to induce her to serve and continue to serve as Chancellor.
- E. The Parties have entered into an agreement to provide Chancellor Li with certain deferred compensation benefits, as set forth herein, that shall be in addition to her current compensation and any future increase thereof for merit or cost of living.

TERMS

In consideration of the mutual promises and covenants set forth below and for other good and valuable consideration, the sufficiency of which is hereby acknowledged, the Parties agree as follows:

Section 1. Credits to Account. The University shall, during the month of July 2021, credit via cash deposit to a separate account owned by the University, entitled the "Chancellor Li Deferred Compensation Account" (the "Account"), 11.5 percent of Chancellor Li's first fiscal year base salary as Chancellor in effect on July 1, 2021 (the "Initial Credit Amount"), beginning on July 1, 2021 and ending June 30, 2022. For purposes of this Agreement, "Fiscal Year" shall mean July 1 to June 30. For each subsequent Fiscal Year, if Chancellor Li continues to serve as Chancellor as of July 1 of such Fiscal Year, then the University shall, during the month of July of such Fiscal Year, credit 11.5 percent of Chancellor Li's annual base salary as Chancellor in effect on July 1 of such Fiscal Year (the "Annual Credit Amount") to the Account (subject to the termination provision in Section 3(c) herein). Each credit of the Annual Credit Amount to the

Account shall be attributable to services to be performed by Chancellor Li as Chancellor for the Fiscal Year in which the credit is made. Amounts credited to the Account shall be invested by an investment manager as selected by the University from time to time during the existence of the Account. The Account shall be adjusted from time to time, not less than annually, to reflect deemed income received or accrued and deemed gains or losses, if any, realized from investing amounts credited to the Account, and for any investment management fees attributed to such investment. Sums so accumulated or invested shall be held exclusively by and for the benefit of the University, shall be a part of the general assets of the University, subject to the claims of its creditors, and Chancellor Li shall have no current or future enforceable interest therein except as provided in this Agreement.

Section 2. Funding Contingencies. The obligation of the University to credit funds to the Account each Fiscal Year shall be subject to the following contingencies:

(a) **Termination of Employment.** If the employment of Chancellor Li as Chancellor is terminated, whether voluntarily or involuntarily, while this Agreement is in effect, then the University shall credit no additional sums to the Account on and after the date of such termination, other than investment earnings or gains earned through the date of such termination. If the termination is voluntary or involuntary for cause, the University shall retain all of the assets credited to the Account and Chancellor Li shall have no further claim to any of the assets credited to the Account or the earnings thereon. If the termination is involuntary not for cause, the Account shall be distributed to Chancellor Li as provided in Section 3(d) herein.

"Termination of Employment" or "Terminates Employment" means the termination of Chancellor Li's employment with the University for reasons other than death or Disability. Whether a Termination of Employment takes place is determined based on the facts and circumstances surrounding the termination of Chancellor Li's employment and whether the University and Chancellor Li intended for Chancellor Li to provide significant services for the University following such termination. A termination of employment will not be considered a Termination of Employment if Chancellor Li continues to provide services for the University (whether as an employee or independent contractor) at an annual rate that is twenty percent (20%) or more of the services rendered, on average, during the immediately preceding three full calendar years of employment (or, if employed less than three years, such lesser period).

Chancellor Li's employment relationship will be treated as continuing intact while Chancellor Li is on military leave, sick leave or other bona fide leave of absence if the period of such leave of absence does not exceed six (6) months, or if longer, so long as Chancellor Li's right to reemployment with the University is provided either by statute or by contract. If the period of leave exceeds six (6) months and there is no right to reemployment, a Termination of Employment will be deemed to have occurred as of the first date immediately following such six-month period.

(b) Disability. If Chancellor Li shall become disabled during the term of this Agreement to an extent that she is no longer able to perform her duties as Chancellor, no further sums shall be credited to the Account following the date of termination as a result of disability other than investment earnings or gains earned through the date of such termination, and the Account shall be distributed to Chancellor Li as provided in Section 3(e) herein.

(c) Death. If Chancellor Li shall die during the term of this Agreement, no further sums shall be credited to the Account following Chancellor Li's date of death other than investment earnings or gains earned through the date of such termination, and the Account shall be distributed to the personal representative of Chancellor Li's estate as provided in Section 3(f) herein.

Section 3. Vesting, Distribution. The Account shall become vested, and shall be distributed to Chancellor Li, in the following manner:

(a) Vesting/Distribution at End of Third Fiscal Year of Service. If Chancellor Li shall continue as Chancellor through June 30, 2024, fifty percent (50%) of the assets credited to the Account by the University through June 30, 2024, including investment earnings attributed on the books of the University thereto through such date, shall vest and shall be distributed, less applicable withholding required by law, to Chancellor Li in a lump sum on or before July 31, 2024.

(b) Vesting/Distributions at End of Fifth Fiscal Year of Service. If Chancellor Li shall continue as Chancellor through June 30, 2026, all remaining assets credited to the Account by the University through June 30, 2026, including all investment earnings attributed on the books of the University thereto for such period, shall vest and shall be distributed (less required withholding) to Chancellor Li in a lump sum on or before July 31, 2026.

(c) Vesting/Distributions After Fifth Fiscal Year of Service. If Chancellor Li shall continue as Chancellor for a period of two additional Fiscal Years from and after July 1, 2026, the assets credited to the Account by the University during such period, including all investment earnings attributed on the books and records of the University thereto for such period, shall vest as of July 1 following the end of such second Fiscal Year, and shall be distributed (less required withholding) in a lump sum on or before July 31 following the second such Fiscal Year. For example, if Chancellor Li's service as Chancellor extends through July 1, 2028, the assets so credited to the Account through June 30, 2028, including all investment earnings attributed on the books of the University thereto, shall vest on July 1, 2028, and shall be distributed (less required withholding) to Chancellor Li in a lump sum on or before July 31, 2028. This two-year credit/vesting program shall continue for as long as Chancellor Li shall continue to serve as Chancellor, unless terminated by the University upon written notice to Chancellor Li not less than sixty (60) days prior to the beginning of the first Fiscal Year of any such two-year credit/vesting period.

(d) Vesting/Distribution Following Involuntary Termination Not For Cause. If the employment of Chancellor Li is involuntarily terminated not for cause while this Agreement is in effect, all of the assets credited to the Account at the time of such termination, including all investment earnings attributed on the books of the University thereto, shall be distributed (less required withholding) to Chancellor Li in a lump sum within thirty (30) days following such date of termination.

(e) Vesting/Distribution Following Disability. In the event that Chancellor Li becomes disabled to an extent that she is no longer able to perform her duties as Chancellor, all of the assets credited to the Account shall vest. If Chancellor Li is deemed Disabled, as defined in the following sentence, the assets credited to the Account, including all investment earnings attributed on the books of the University thereto, will be distributed (less required withholding) to Chancellor Li in a lump sum within thirty (30) days following the date of Disability determination. Chancellor Li will be deemed Disabled if Chancellor Li: (i) is unable to engage in any substantial gainful activity by reason of any medically determinable physical or mental impairment which can be expected to result in death or can be expected to last for a continuous period of not less than twelve (12) months; or (ii) is, by reason of any medically determinable physical or mental impairment which can be expected to result in death or can be expected to last for a continuous period of not less than twelve (12) months, receiving income replacement benefits for a period of not less than three (3) months under an accident and health plan covering employees of the University. Medical determination of Disability may be made by either the Social Security Administration or the University. Chancellor Li must submit proof acceptable to the Board of Disability, including, but not limited to, the Social Security Administration's determination.

(f) Vesting/Distribution Following Death. In the event that Chancellor Li shall die while this Agreement is in effect, all of the assets credited to the Account at the time of death, including all investment earnings attributed on the books of the University thereto, shall vest and be distributed (less required withholding) to the personal representative of Chancellor Li's estate in a lump sum within thirty (30) days following Chancellor Li's date of death.

Section 4. Conditions to Distributions. Any distributions to Chancellor Li from the Account are subject to, and contingent upon, the non-occurrence of the following acts or omissions, as determined in good faith by the University, to wit:

(a) Chancellor Li shall commit any substantial or material violation of the directives, bylaws, policies, rules or regulations of the Board pertaining to her duties as Chancellor of the University.

(b) Chancellor Li shall commit any substantial violation of any rule or regulation of the National Collegiate Athletic Association (or any successor organization) that is applicable to the University and its intercollegiate athletic programs.

(c) Chancellor Li shall commit any dishonest or fraudulent act or any misappropriation of funds of the University.

(d) Chancellor Li shall attempt to assign or encumber any benefits or other payments that she may be entitled to receive hereunder prior to the time of actual distribution and receipt.

(e) Chancellor Li shall be a party to or convicted of any act involving moral turpitude or detrimental conduct of sufficient magnitude to reflect discredit upon herself or the University.

In the event that Chancellor Li engages in any one or more of the above specified acts or omissions, then she shall not, in any event, be entitled to receive any benefits from the Account or otherwise, pursuant to this Agreement, and the University shall retain all of the assets therein. Chancellor Li shall retain all assets previously distributed from the Account.

Section 5. No Present Rights. Neither Chancellor Li, her personal representative, heirs, legatees, distributees, or any other person claiming under her shall have any right to commute, encumber, or otherwise dispose of any right to receive payments hereunder, all of which payments and the rights thereto are expressly declared to be non-assignable. In addition, such rights as herein created shall not be subject to execution, attachment, or similar process. Any attempt to assign, transfer, pledge, or otherwise dispose of any such right, interest, or benefit contrary to the provisions of this Agreement, or the levy of any attachment or similar process thereon, shall be null and void and without effect.

Section 6. No Discretionary Powers. Chancellor Li shall take no part whatsoever in the exercise of discretionary powers that are retained by the University pursuant to this Agreement. The University shall incur no liability to Chancellor Li for the manner or method in which the assets of the Account are managed or invested.

Section 7. Intent of Parties. Anything to the contrary notwithstanding, it is the intention of the Parties that the Agreement shall create a contractual obligation to make payments as provided herein. The Parties do not intend, and this document should not be construed, to establish any trust for the benefit of Chancellor Li or to grant her any beneficial interest in the amounts credited to the separate Account established herein until she is entitled to receive payment thereof, nor shall it be construed as an election on the part of Chancellor Li to defer any current compensation to which she might be otherwise entitled by reason of her current employment by the University.

Section 8. Miscellaneous Provisions.

(a) Entire Agreement, Amendment. This document constitutes the entire agreement between the Parties with respect to the subject matter addressed herein and may not be modified, amended or terminated except by a written agreement specifically referring to this Agreement signed by the Parties.

(b) Captions. The section headings contained herein are for the purposes of convenience only and are not intended to define or limit the contents of said section.

(c) Binding Effect. Except as otherwise expressly provided herein, this Agreement shall be binding upon and inure to the benefit of the Parties and their respective successors, assigns and heirs.

(d) Nebraska Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Nebraska.

(e) No Acceleration or Delay of Distributions. The time or manner of distribution of amounts deferred under this Agreement may not be changed by amendment or otherwise except in conformity with the requirements of Code Section 409A.

(f) Taxes on Distributions. The University or its paying agent shall withhold any taxes that are required to be withheld from the benefits provided under this Agreement. Chancellor Li acknowledges that the University's sole liability regarding taxes is to forward any amounts withheld to the appropriate taxing authority(ies). Further, the University or the paying agent shall satisfy all applicable reporting requirements, including those under Section 409A of the Code and regulations thereunder.

(g) Administration of Agreement. This Agreement shall at all times be administered and the provisions of this Agreement shall be interpreted consistent with the requirements of Section 409A and Section 457 of the Code and any and all regulations thereunder, including such regulations as may be promulgated after the date of this Agreement.

(h) Distributions Upon Income Inclusion Under Code Section 457(f). Notwithstanding any provision in this Agreement to the contrary, upon the occurrence of any event that results in Chancellor Li becoming vested in whole or in part in amounts credited to the Account, as reasonably determined by the University, the University will permit a lump sum distribution of an amount to pay Federal, state and local income taxes due upon the vesting event, provided that the amount of such payment is not more than an amount equal to the Federal, state, and local income tax withholding that would have been remitted by the University if there had been a payment of wages equal to the income includible by Chancellor Li under Code Section 457(f) at the time of the vesting.

(i) Distribution upon Income Inclusion under Code Section 409A Failure. If this Agreement fails to meet the requirements of Code Section 409A and as a result, some portion of Chancellor Li's benefit is required to be included in her income, the University will pay Chancellor Li the amount required to be included in her income as a result of such failure and noncompliance and the balance in the Account will be reduced accordingly. If the failure to meet the requirements of Code Section 409A is solely caused by an act or omission by the University (without the participation therein by Chancellor Li) occurring after the date of this agreement, the University agrees to pay Chancellor Li an amount (the "409A Penalty Tax Reimbursement") that, after withholding for applicable federal and state income taxes, is needed for Chancellor Li to pay the interest and additional tax described in Code Section 409A(a)(1)(B). The 409A Penalty Tax Reimbursement will not include the ordinary federal and state income tax Chancellor Li owes due to the inclusion in her income of amounts payable to her pursuant to this Agreement. Chancellor Li shall notify the General Counsel of the University in writing within 30 days following the date that she has remitted the interest and additional tax described in Code Section 409A(a)(1)(B), showing the amount thereof. If the University is legally obligated to pay the 409A Penalty Tax Reimbursement, the University will pay the 409A Penalty Tax Reimbursement within sixty (60) days following its receipt of such notification.

(j) Counterparts. This Agreement may be executed in counterparts, each of which shall be an original, and which together shall constitute a single document.

IN WITNESS WHEREOF, Chancellor Li and the University have executed this Agreement on the respective dates set forth below to be effective on July 1, 2021.

**The Board of Regents of the
University of Nebraska**

05/12/21 | 21:45 CDT

Date

By: 

Chris Kabourek, Vice President for
Business and Finance

05/13/21 | 09:30 CDT

Date


Joanne W. Li, Ph.D.